

SENATE No. 1192

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to provide a DNA exception for statute of limitations on sex offenses.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>1/22/2025</i>
<i>Dennis C. Gallagher</i>	<i>8th Plymouth</i>	<i>1/22/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>1/22/2025</i>
<i>Kenneth P. Sweezey</i>	<i>6th Plymouth</i>	<i>1/23/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>1/30/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/6/2025</i>

SENATE No. 1192

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 1192) of Mark C. Montigny, Christopher Hendricks, Dennis C. Gallagher, Steven George Xiarhos and other members of the General Court for legislation to provide a DNA exception for statute of limitations on sex offenses. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1060 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to provide a DNA exception for statute of limitations on sex offenses.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 63 of chapter 277 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting at the end thereof the following paragraph:-

3 Notwithstanding the first paragraph, a prosecution for a sex offense, as defined in section
4 178C of chapter 6, may be commenced at any time if forensic evidence, as defined in section 220
5 of chapter 111, has been collected and preserved, and if such forensic evidence can be subjected
6 to DNA analysis, as defined in section 1 of chapter 22E, that can establish the identity of the
7 defendant.